NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(Video Conference)

PRESENT: JUSTICE TELAPROLU RAJANI – MEMBER JUDICIAL

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING HELD ON 24.01.2023 AT 10.30 AM

TC/CP. Nos.	CA/IA No.	Section/ Rule	Name of Parties
CA(A) Merger & Amalgamation/1/230/AMR/2023		230	Malaxmi Properties Private Limited (Fourth Transferor Company) and Malaxmi Property Management Services Private Limited (Fifth Transferor Company)

ORDER

Mr.M.Ramana Reddy, PCS for the Applicant present.

CA(CAA) No.1/230/AMR/2023 is allowed, vide separate orders.

Sd/-
JUSTICE TELAPROLU RAJANI
MEMBER JUDICIAL

RSN

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL, AMARAVATI BENCH, AT MANGALAGIRI

CA (CAA) No.1/230/AMR/2023

In the matter of the Companies Act, 2013;

AND

In the matter of Section 230 to 232 of the Companies Act, 2013

AND

In the matter of Scheme of Amalgamation between M/s.Malaxmi Infra Ventures (India) Private Limited (Transferee Company), M/s.Malaxmi Property Ventures Private Limited (Transferor Company -1), M/s.Tejaswini Projects Private Limited (Transferor Company-2), M/s. Raicherla Power Private Limited (Transferor Company -3), M/s.Malaxmi Properties Private Limited (Transferor Company-4) and M/s.Malaxmi Property Management Services Private Limited (Transferor Company-5) and their Respective Shareholders and Creditors

M/s. Malaxmi Properties Private Limited,
(CIN: U45200AP2005PTC045541)
Rep. by its Director Mr. Karanki Nagaraju (DIN No. 03629456),
Having its registered office at Madhu Malaxmi Chambers,
D. No. 32-9-17, 17A & 32-2-6, A S Rama Rao Road,
Mogalrajpuram, Vijayawada Andhra Pradesh - 520010.

... Applicant/Transferor Company-4

M/s. Malaxmi Property Management Services Private Limited,
(CIN: U74140AP2005PTC047976)
Rep. by its Director Mr. Tirumal Srinivas Myneni (DIN:03429948),
Having its registered office at Madhu Malaxmi Chambers,
D. No. 32-9-17, 17A & 32-2-6, A S Rama Rao Road,
Mogalrajpuram, Vijayawada Andhra Pradesh - 520010.

... Applicant/Transferor Company-5

Date of pronouncement of orders: 24.01.2023

Coram:
Justice Telaprolu Rajani, Member (Judicial).

Counsel/Parties present:

For Applicant(s) : Mr. M.Ramana Reddy, PCS

Per: Justice Telaprolu Rajani, Member (Judicial)

ORDER

1. The present Company Application is filed under Sections 230 to 232 of the Companies Act, 2013 read with Rule 3 of the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 by the Applicant Companies seeking to dispense with convening the meeting of the Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies for consideration of the Scheme of Amalgamation ("Scheme" for short) between the Applicant Companies and their respective shareholders and creditors as envisaged under the Scheme.

2. The Registered Offices of the Applicant Companies are situated in the State of Andhra Pradesh and therefore, they are within the jurisdiction of this Tribunal.

3. Brief facts leading to the filing of the present case are as follows:

a) The Applicant/Transferor Company-4 was originally incorporated under the name and style "Raicherla Realtors Private Limited" under the companies Act, 1956 on 04.03.2005. Subsequently the name of the Company was changed from "Raicherla Realtors Private Limited" to "Malaxmi Properties Realcon Private Limited and again the name was changed to **Malaxmi Properties Private Limited** as a private limited company on 15.09.2022. The Authorised Share Capital is Rs.2,00,00,000/- divided into 20,00,000 equity shares of Rs.10/- each. The issued, subscribed and paid-up share capital is Rs.1,62,00,000/- divided into 16,20,000 equity shares of Rs.10/- each. The main objects of the Company are to carry on the business of proprietors of estates, mines, lands, buildings, factories, warehouses, concessions, privileges, licenses, easements or any other interest in or with respect to any property including flats, main sonettes, dwelling houses, estates, shops, offices and clubs and to develop, sell, let on lease, hire or dispose of the same on any system and for these purposes to purchase, take on lease or otherwise acquire and hold any lands, estates or buildings of any tenure or

description wherever situate, rights or interests therein or connected therewith and to prepare building sites, construct, reconstruct, pull down, alter, improve, decorate, furnish and maintain flats, etc.

b) The Applicant/Transferor Company-2 was incorporated as a private limited company on 08.11.2005. The Authorised Share Capital is Rs.1,00,000/- divided into 10,000 equity shares of Rs.10/- each. The issued, subscribed and paid-up share capital is Rs.1,00,000/- divided into 10,000 equity shares of Rs.10/- each. The main objects of the Company are to carry on the business or vocation of acting as advisors and consultants and render services on all matters relating to purchase, sale, development, exchange, lease, hire, whether for investment or sale of real estates of all kinds and to act as advisors, consultants on all matters relating to development, construction, building, erection, demolition, re-erection, alteration, repair, remodeling or any other work in connection with any building, building scheme, roads, high ways, and for such purpose to prepare estimates, designs, plans, specifications or models thereof and to provide management consultancy services to individuals, firms, companies, bodies corporate, societies, undertakings, organizations, institutions, associations, government, local authorities and others in relation to building of township, etc.

4. According to the Applicant Companies, the Scheme of Amalgamation would inter alia have the benefits of consolidation of business of the companies, post completion of acquisition and focused management attention to respective businesses as a single entity; and unlocking the value of businesses.

5. It is further stated that the Board of Directors of the Applicant Companies vide its resolution dated 03.11.2022 has approved the Scheme of Amalgamation with appointed date as 01.04.2022, subject to the approval of their shareholders and creditors.

6. It is stated that no investigation or proceedings have been instituted or are pending in relation to the Applicant Companies.

7. The Applicant/Transferor Company-4 has filed certificate of the Auditor stating that as on 31.10.2022 there are Two (2) Equity Shareholders, together holding 16,20,000 Equity shares and they have given their consent in the form of affidavits, agreeing to the proposed Scheme.

8. The Applicant/Transferor Company-4 has filed certificate of the Auditor stating that as on 31.10.2022 there are Four (4) Unsecured Creditors having a debt of Rs.5,58,93,291/- and they have given their consent in the form of affidavits, agreeing to the proposed Scheme.

9. The Applicant/Transferor Company-4 has filed certificate of the Auditor stating that as on 31.10.2022 there are Two (2) Secured Creditors having a debt of Rs.12,02,28,133/- and they have given their consent in the form of affidavits, agreeing to the proposed Scheme.

10. The Applicant/Transferor Company-5 has filed certificate of the Auditor stating that as on 31.10.2022 there are Two (2) Equity Shareholders, together holding 10,000 equity shares, have given their consent in the form of affidavits, agreeing to the proposed Scheme.

11. The Applicant/Transferor Company-5 has filed certificate of the Auditor stating that as on 31.10.2022 there are only One (1) Unsecured Creditor having a debt of Rs.5,28,000/- and have given its consent in the form of affidavit, agreeing to the proposed Scheme.

12. Heard the submissions made in this regard by Mr.M.Ramana Reddy, Learned Practising Company Secretary (PCS) appearing for the Applicant Companies and perused the documents filed.

13. It is noted that all the equity shareholders of the Applicant Companies have given consent affidavits, agreeing to the proposed Scheme of Amalgamation. Hence the meeting of the Equity Shareholders of the Applicant Companies can be dispensed with, in terms of Section 230(9) of the Act.

14. It is noted that Secured Creditors of the Applicant/Transferor Company-4 have given consent affidavit agreeing to the proposed Scheme of Amalgamation. Hence the meeting of the Secured Creditors of the Applicant/ Transferor Company-4 can be dispensed with, in terms of Section 230(9) of the Act.

15. It is noted that Unsecured Creditors have given consent affidavit agreeing to the proposed Scheme of Amalgamation. Hence the meeting of the Unsecured Creditors of the Applicant Companies can be dispensed with, in terms of Section 230(9) of the Act.

16. In compliance of sub section(5) of Section 230 of the Act and Rule 8 of the Companies (CAA) Rules, 2016, the applicant companies shall send notice under sub section (3) of Section 230 read with Rule 6 of the Rules with a copy of the Scheme, the explanatory statement and the disclosures mentioned in Rule 6 to (a) the Central Government through the Regional Director, South Eastern Region; (b) the Registrar of Companies, Andhra Pradesh; (c) the Income Tax Authorities; and (d) the Official Liquidator. The said notices be sent either by Registered Post or by Speed Post or by Hand Delivery at the Offices of the authorities as required by sub rule (2) of Rule 8 of the Rules. The aforesaid authorities, who desire to make any representation under sub section (5) of section 230 shall send the same to this Tribunal within a period of 30 (thirty) days from the date of receipt of such notice, failing which it shall be

deemed that they have no representation to make on the proposed Scheme.

17. In the event of the Applicant Companies approaching this Tribunal seeking approval of the Scheme, it would be open for any person who is interested in the Scheme to put forth his/their contention(s) before the Tribunal. Hence ordered.

ORDER

The Company Application i.e., CA(CAA) No.1/230/AMR/2023 is allowed and disposed of accordingly.

Sd/- dated 24.01.2023

JUSTICE TELAPROLU RAJANI
MEMBER JUDICIAL

Swamy Naidu